

CHAPTER 39.

An Act to facilitate the construction and maintenance of
Telegraphic Lines. [16th December 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to
Postmaster
General to
place tele-
graphic lines
across rail-
ways and
canals.

1. Where the Postmaster General has constructed, or desires to construct, a telegraphic line along a street or public road or on, over, or under any land (including any buildings), and the said line crosses or is carried over, upon, or under, or it is, in his opinion, expedient that the said line shall cross, or be carried over, upon, or under, a railway or canal, the Postmaster General may enter upon that railway or canal for the purpose of maintaining or altering the said telegraphic line, if already constructed, or (as the case may be) for the purpose of placing the said telegraphic line thereon (either overhead or underground) and of maintaining or altering the same, and may remain for such reasonable time and execute and do all such works and things as may be necessary or convenient for the purposes aforesaid : Provided that—

- (1) The powers conferred by this Act shall not apply to any portion of a telegraphic line where that portion is placed or intended to be placed along the course of a railway or canal for a greater distance than a quarter of a mile ; and
- (2) In executing and doing any such works and things, the Postmaster General shall not interfere with the traffic along or user of the railway or canal, and shall enjoy the rights and powers aforesaid, subject to the following conditions :—

(a) The Postmaster General shall, not less than twenty-one days before he places any telegraphic line, give to the railway company or canal company a notice specifying the course and position and method of construction and attachment (if any) of the proposed telegraphic line, and any proposed means of protection where necessary, so far as regards the railway or canal, and, if within twenty-one days after such notice the company object to the proposals specified in the notice, a difference shall be deemed to have arisen between the Postmaster General and the company :

(b) The Postmaster General shall not, under the powers of this Act, be entitled to make any attachment to or prejudicially affect any telegraphic line belonging to or maintained by the railway company or canal company :

(c) The Postmaster General shall be responsible for the proper maintenance of any telegraphic line constructed or maintained by him under the powers conferred by this Act :

(d) The Postmaster General shall, upon receiving notice in writing from the railway company or canal company, remove or alter within a reasonable time, and to the reasonable satisfaction of the railway company or canal company, any telegraphic line of the Postmaster General constructed or maintained under the authority of this Act which shall interfere with the existing or any proposed works of the railway company or canal company or the traffic thereon: Provided that, if within twenty-one days after receipt of such notice the Postmaster General objects to the removal or alteration required by such notice, a difference shall be deemed to have arisen between the Postmaster General and the company :

(e) If any damage or injury be caused to the railway or canal by the placing, user, alteration, repair, or maintenance of the telegraphic line, the Postmaster General shall, at his own expense, make good such damage or injury, and shall indemnify the railway company or canal company against any damage or expense to which they may be put by reason of any such damage or injury :

(f) If the railway company or canal company shall incur any expense by or in consequence of the exercise by the Postmaster General of any powers conferred upon him by this Act, the Postmaster General shall from time to time pay to the company the amount of such expense.

2.—(1) Nothing in this Act shall take away or prejudicially ^{Savings.} affect the right or title of any railway company or canal company to any payment, privilege, or other consideration which the Postmaster General would have been liable to make or give if this Act had not passed, in respect of wayleave for telegraphs or in respect of the occupation of the railways or canals of the company by the Postmaster General for telegraphic purposes. But, notwithstanding anything contained in any Act, agreement, or award, the Postmaster General shall be under no liability to make any payment to any railway company or canal company in respect of any right or claim of the railway company or canal company to construct or maintain any telegraphic line which the Postmaster General is authorised by this Act to construct or maintain, or in respect of the waiver of any such right or claim of the railway company or canal company.

(2) The powers conferred by this Act shall be in addition to and shall not derogate from any powers conferred upon the Postmaster General by the Telegraph Acts, 1863 to 1909.

Determina-
tion of dif-
ferences.

9 Edw. 7. c. 20.

3. If any difference arises between the Postmaster General and any railway company or canal company under this Act, the difference shall be referred to and determined by the Railway and Canal Commission, and the provisions of section two (which relates to the procedure of the Commission) of the Telegraph (Arbitration) Act, 1909, shall apply to any proceedings relating to such difference.

For protec-
tion of Earl
of Ellesmere
and the
Manchester
Ship Canal
Company.

48 & 49 Vict.
c. clxxxvii.

4. For the protection of the Right Honourable Francis Charles Granville Egerton, Earl of Ellesmere, and his successors in title, or other the owner or owners for the time being of the estates situate in Worsley and elsewhere in the county of Lancaster known as the Ellesmere Estates (herein-after referred to as "the owner") and of the Manchester Ship Canal Company the following provisions shall, unless otherwise agreed in writing, have effect (that is to say): Nothing in this Act shall take away or prejudicially affect any rights, powers, or privileges of the owner, the Manchester Ship Canal Company, or of the Postmaster General under the agreement dated the tenth day of December one thousand eight hundred and eighty, made between the Honourable Algernon Egerton, the Right Honourable John Frederick Vaughan, Earl Cawdor, and the Right Honourable George Henry Charles, Baron Strafford, of Harmondsworth, commonly called Viscount Enfield, of the first part, the Right Honourable Francis Charles Granville Egerton, Earl of Ellesmere, of the second part, the Bridgewater Navigation Company, Limited, of the third part, and the Right Honourable Henry Fawcett, M.P., then Her late Majesty's Postmaster General, of the fourth part, as modified by section two hundred and eight of the Manchester Ship Canal Act, 1885, but the said agreement as so modified shall continue in full force and effect as if this Act had not been passed.

Saving for
North Staf-
fordshire
Railway
Company.

5. Nothing in this Act contained shall prejudice, alter or affect any of the provisions of the agreement made between the North Staffordshire Railway Company and the Postmaster General bearing date the twelfth day of January one thousand nine hundred and five.

Extent of
Act.

31 & 32 Vict.
c. 110.
32 & 33 Vict.
c. 73.

41 & 42 Vict.
c. 75.

6.—(1) This Act shall apply only to railways and canals across which the Postmaster General has a right of way or wayleave for his telegraphic lines:—

- (a) Under the Telegraph Acts, 1868–1869, or any agreement or award confirmed thereby or made under the provisions thereof; or
- (b) (In the case of railways referred to in the first proviso to section six of the Telegraph Act, 1878) under the Telegraph Act, 1878.

(2) The agreement dated the 2nd day of March 1900 and made between the London Tilbury and Southend Railway Company and the Postmaster General shall, for the purposes of this Act, be deemed not to have been made under the provisions of

the Telegraph Acts, 1868–1869, and nothing in this Act shall affect any railway belonging to the said company, unless that railway is leased or worked by any of the railway companies referred to in the first proviso to section six of the Telegraph Act, 1878.

7.—(1) In this Act—

The expressions “telegraphic line,” “alteration,” and “altering” have the same meaning as in the Telegraph Act, 1878;

Interpretation
and notices.

The expressions “street,” “public road,” “railway,” “canal,” and “land” have the same meaning as in the Telegraph Act, 1863, as amended by the Telegraph Act, 1892;

26 & 27 Vict.
c. 112.
55 & 56 Vict.
c. 59.

The expressions “railway company” and “canal company” respectively include the proprietors or lessees, or the directors or persons having the control of a railway or canal.

(2) Section twelve of the Telegraph Act, 1878 (which relates to the printing, authentication, and service of notices and other documents), shall apply for the purposes of this Act as it applies for the purposes of that Act.

8. This Act may be cited as the Telegraph (Construction) Act, 1911, and may be cited with the Telegraph Acts, 1863 to 1911.

Short title.

CHAPTER 40.

An Act to provide for the appointment of two additional Commissioners in Lunacy and to transfer the power of making Vesting Orders from the Judge in Lunacy to the High Court.
[16th December 1911.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. The powers of the Judge in Lunacy under sections one hundred and thirty-five to one hundred and forty-three of the Lunacy Act, 1890, as amended by any subsequent enactment, to make such vesting and other orders as are in those sections mentioned shall except so far as they relate to lunatic mortgagees, not being also trustees, be transferred to, and, subject to rules of the Supreme Court, be exercisable by, the High Court, and, except as aforesaid, those sections as so amended shall have effect accordingly as if for references to the Judge in Lunacy there were substituted references to the High Court.

Transfer of
powers as to
vesting orders
from Judge in
Lunacy to
High Court.
53 & 54 Vict.
c. 5.